

1	Hendrickson vs. The L3 Property Management 30-2025-01519722	<u>Motion to Be Relieved as Counsel</u> Counsel Phillip R. Geurts’s Motion to Be Relieved as Counsel for Plaintiff Luke Mensink is CONTINUED to September 8, 2026 at 9:00 a.m. in Department N15. Counsel Phillip R. Geurts is ORDERED to file with the court and serve on all parties to this action pursuant to California Rules of Court rule 3.1362, an amended Declaration in Support of Attorney’s Motion to Be Relieved as Counsel – Civil (Form MC-052) and a proposed Order Granting Attorney’s Motion to Be Relieved as Counsel – Civil (Form MC-053), that are completely and correctly filled out, within 15 days of this ruling. Counsel Phillip R. Geurts remains and shall continue to act as counsel of record for Plaintiff Luke Mensink. <u>Pending Motion</u> Counsel Phillip R. Geurts (Counsel) moves to be relieved as counsel for Plaintiff Luke Mensink. <u>Standard to Be Relieved as Counsel</u> “The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.) The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council’s Notice of Motion and Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).) No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).) However, “[t]he motion to be relieved as counsel must be accompanied by a declaration on the <i>Declaration in Support of Attorney’s Motion to Be Relieved as Counsel – Civil</i> (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Cal. Rules of Court, rule 3.1362(c), italics original.)
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		prejudice to the client's interests, " (<i>Ramirez vs. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915), or "an unreasonable disruption of the orderly processes of justice," (<i>People v. Ortiz</i> (1990) 51 Cal.3d 975, 979). The court may also deny an attorney's request to withdraw "where such withdrawal would work an injustice or cause undue delay in the proceeding". (<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>) In this case, Counsel has failed to comply with the requirements of California Rules of Court rule 3.1362. While Counsel has served the motion papers upon Plaintiff Luke Mensink, Counsel has not stated in his declaration that Counsel has 1) confirmed within the last 30 days that the address is the client's current address or 2) that the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (See Decl. in Supp. of Att'y's Mot. to Be Relieved as Counsel – Civil, ¶ 3.) In addition, Counsel has not filed or served a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053). The California Rules of Court require that "[w]herever applicable, [mandatory forms] must be used by all parties . . ." (Cal. Rules of Court, rule 1.31(a).) Therefore, the court will continue the hearing on this motion and order that Counsel file and serve a Declaration in Support of Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-052) and a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053), that have been completely and correctly filled out. The court may deny the motion if Counsel fails to supplement the motion papers as required. Counsel shall give notice of this ruling in the manner ordered by the court.
2	MacRobie vs. Forward Financing LLC 30-2026-01552515	<u>Application to Appear Pro Hac Vice</u> The Verified Application for <i>Pro Hac Vice</i> Admission of Courtney L. Hayden is GRANTED. <u>Pending Motion</u>